

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

Index No.:

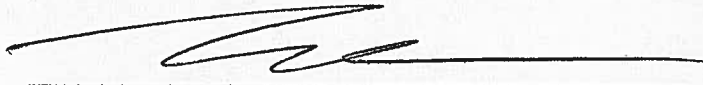
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JAHKEDA JOSEPH, DEVON JOSEPH
JONATHAN MARTINEZ & DENNIS DOLMO,**SUMMONS**Plaintiffs designate
BRONX County
as the place of trial.

Plaintiffs,

-against-

THE CITY OF NEW YORK, P.O. MICHAEL
POMERANTZ Tax Id # 947364, P.O. CESAR GOMEZ
Tax Id # 941024, Sergeant EDWIN CHING Tax Id # 917418,The basis of venue is:
the place of occurrenceDefendants.
-----X**To the above named Defendants:**

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiffs' attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: NEW YORK, NEW YORK
August 28, 2014
Thomas G. Cascione, Esq.
CASCIONE, PURCIGLIOTTI & GALLUZZI, P.C.
Attorneys for Plaintiffs
20 Vesey Street, Suite 1100
New York, New York 10007
(212) 964-9640 Our File No.: 3854CORPORATION COUNSEL OF THE
CITY OF NEW YORK
Attorneys for Defendant**THE CITY OF NEW YORK**Claim #: 2014PI002183, Claim #: 2014PI002198, Claim #: 2014PI002199, Claim #: 2013PI07989
100 Church Street
New York, New York 10007P.O. MICHAEL POMERANTZ Tax Id # 947364, P.O. CESAR GOMEZ
Tax Id # 941024, Sergeant EDWIN CHING Tax Id # 917418 c/o NYPD 44th Pct.

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

Index No:

-----X
JAHKEDA JOSEPH, DEVON JOSEPH
JONATHAN MARTINEZ & DENNIS DOLMO,

VERIFIED COMPLAINT

Plaintiffs,
-against-

THE CITY OF NEW YORK, P.O. MICHAEL
POMERANTZ Tax Id # 947364, P.O. CESAR GOMEZ
Tax Id # 941024, Sergeant EDWIN CHING Tax Id # 917418,

Defendants.
-----X

Plaintiffs, by their attorneys, CASCIONE, PURCIGLIOTTI & GALLUZZI, P.C.,
complaining of the Defendants, respectfully allege, upon information and belief:

1. At the time of the commencement of this action, Plaintiffs were residents of the County of Bronx, State of New York.
2. The cause of action alleged herein arose in the County of Bronx, State of New York.
3. At all times relevant and material herein, the defendant CITY OF NEW YORK was and still is a domestic municipal corporation, duly organized and existing under and by virtue of the Laws of the State of New York.
4. At all times relevant and material herein, the defendants P.O. MICHAEL POMERANTZ Tax Id # 947364, P.O. CESAR GOMEZ Tax Id # 941024, Sergeant EDWIN CHING Tax Id # 917418, were members of the New York City Police Department and employees of the CITY OF NEW YORK.
5. On December 17, 2013, an Order to Show Cause (Motion to File Late Notice of Claim), containing a duly executed notice of claim addressed to the Office of the Comptroller of the City

of New York and plaintiffs' affidavit was received by the Bronx County Supreme Court.

6. Plaintiffs' Order to Show Cause Petition seeking leave to file a late Notice of Claim was granted in its entirety without opposition. Plaintiffs' late Notice of Claim was deemed served nunc pro tunc.

7. Hearings pursuant to General Municipal Law 50(h) were held and completed by the CITY OF NEW YORK.

8. At least thirty (30) days have elapsed since the service of such notice and adjustment or payment thereof has been neglected or refused.

9. This action is commenced within one year and ninety days after the happening of the events upon which it is based.

10. At approximately 12:30 a.m. on June 16, 2013 on or about 188th Street in the County of The Bronx while plaintiffs were lawful passengers in a motor vehicle, P.O. MICHAEL POMERANTZ Tax Id # 947364, P.O. CESAR GOMEZ Tax Id # 941024, Sergeant EDWIN CHING Tax Id #917418, and other members of the NYPD conducted a warrantless car stop without probable cause. An air pistol and a shotgun were located in said vehicle however they were the lawful property of the vehicle's owner and operator who immediately identified himself as the owner of the weapons. Despite that fact members of the NYPD placed the plaintiffs under arrest and charged them with felony weapons possession.

11. On June 16, 2013, plaintiffs were caused to be detained, searched, falsely arrested, wrongfully imprisoned and charged with felony weapons possession by P.O. MICHAEL POMERANTZ Tax Id # 947364, P.O. CESAR GOMEZ Tax Id # 941024, Sergeant EDWIN CHING Tax Id #917418, and other officers of the NYPD. Plaintiffs were taken into custody and were transported to Central Booking and during which detention they were caused to sustain

physical, mental and emotional injuries.

**As and For a First Cause of Action for False Arrest, Wrongful Imprisonment
and Malicious Prosecution on behalf of Plaintiff JAHKEDA JOSEPH**

12. On June 17, 2013 Plaintiff JAHKEEDA JOSEPH was arraigned and bail was set. Bail was subsequently posted for Plaintiff who was not released until the morning of June 22, 2013. Criminal Charges were filed in Bronx Criminal Court under docket 2013BX035301.

13. The detention, search and arrest of JAHKEDA JOSEPH was unjustified and was not caused by any action on his part. The arrest and subsequent imprisonment of JAHKEDA JOSEPH was without probable cause and was legally unjustifiable.

14. That from on or about June 16, 2013 until October 9, 2013, Defendants deliberately and maliciously prosecuted Plaintiff, an innocent man, without any probable cause whatsoever, by filing or causing to be filed a complaint in the Criminal Court of the City of New York, Bronx County, for the purpose of falsely accusing the Plaintiff of a violation of the criminal laws of the State of New York. Said complaint was subsequently dismissed.

15. Because of the above stated false arrest, wrongful imprisonment and malicious prosecution, Plaintiff JAHKEDA JOSEPH was caused to have suffered emotional pain, shock and mental anguish and these injuries and their effects will be permanent.

16. Because of the above stated false arrest, wrongful imprisonment and malicious prosecution, Plaintiff JAHKEDA JOSEPH was caused to lose time from work, suffered lost wages, suffered damage to his personal and professional reputation and was otherwise financially damaged.

17. That as a result of the foregoing search, seizure, false arrest, wrongful imprisonment and

malicious prosecution, Plaintiff was damaged in an amount which exceeds the jurisdiction of all lower Courts that may otherwise have jurisdiction over this action.

**As and For a Second Cause of Action for False Arrest, Wrongful Imprisonment
and Malicious Prosecution on behalf of Plaintiff DEVON JOSEPH**

18. On June 17, 2013 Plaintiff was arraigned and released. Criminal Charges were dismissed in Bronx Criminal Court on October 9, 2013 under docket 2013BX035298.

19. The detention, search and arrest of DEVON JOSEPH was unjustified and was not caused by any action on his part. The arrest and subsequent imprisonment of DEVON JOSEPH was without probable cause and was legally unjustifiable.

20. That from on or about June 16, 2013 until October 9, 2013, Defendants deliberately and maliciously prosecuted Plaintiff, an innocent man, without any probable cause whatsoever, by filing or causing to be filed a complaint in Criminal Court of the City of New York, Bronx County, for the purpose of falsely accusing the Plaintiff of a violation of the criminal laws of the State of New York.

21. Because of the above stated false arrest, wrongful imprisonment and malicious prosecution, Plaintiff DEVON JOSEPH was caused to have suffered emotional pain, shock and mental anguish and these injuries and their effects will be permanent.

22. Because of the above stated false arrest, wrongful imprisonment and malicious prosecution, Plaintiff DEVON JOSEPH was caused to lose time from work, suffered lost wages, suffered damage to his personal and professional reputation and was otherwise financially damaged.

23. That as a result of the foregoing search, seizure, false arrest, wrongful imprisonment and

malicious prosecution, Plaintiff was damaged in an amount which exceeds the jurisdiction of all lower Courts that may otherwise have jurisdiction over this action.

**As and For a Third Cause of Action for False Arrest, Wrongful Imprisonment
and Malicious Prosecution on behalf of Plaintiff JONATHAN MARTINEZ**

24. On June 17, 2013 Plaintiff was arraigned and released. Criminal Charges were dismissed in Bronx Criminal Court on September 16, 2013.

25. The detention, search and arrest of JONATHAN MARTINEZ was unjustified and was not caused by any action on his part. The arrest and subsequent imprisonment of JONATHAN MARTINEZ was without probable cause and was legally unjustifiable.

26. That from on or about June 16, 2013 until September 16, 2013, Defendants deliberately and maliciously prosecuted Plaintiff, an innocent man, without any probable cause whatsoever, by filing or causing to be filed a complaint in the Criminal Court of the City of New York, Bronx County, for the purpose of falsely accusing the Plaintiff of a violation of the criminal laws of the State of New York.

27. Because of the above stated false arrest, wrongful imprisonment and malicious prosecution, Plaintiff JONATHAN MARTINEZ was caused to have suffered emotional pain, shock and mental anguish and these injuries and their effects will be permanent.

28. Because of the above stated false arrest, wrongful imprisonment and malicious prosecution, Plaintiff JONATHAN MARTINEZ was caused to lose time from work, suffered lost wages, suffered damage to his personal and professional reputation and was otherwise financially damaged.

29. That as a result of the foregoing search, seizure, false arrest, wrongful imprisonment and malicious prosecution, Plaintiff was damaged in an amount which exceeds the jurisdiction of all lower Courts that may otherwise have jurisdiction over this action.

**As and For a Fourth Cause of Action for False Arrest, Wrongful Imprisonment
and Malicious Prosecution on behalf of Plaintiff DENNIS DOLMO**

30. On June 17, 2013 Plaintiff was arraigned and released. Criminal Charges were dismissed in Bronx Criminal Court on October 9, 2013 under docket 2013BX035299.

31. The detention, search and arrest of DENNIS DOLMO was unjustified and was not caused by any action on his part. The arrest and subsequent imprisonment of DENNIS DOLMO was without probable cause and was legally unjustifiable.

32. That from on or about June 16, 2013 until October 9, 2013, Defendants deliberately and maliciously prosecuted Plaintiff, an innocent man, without any probable cause whatsoever, by filing or causing to be filed a complaint in Criminal Court of the City of New York, Bronx County, for the purpose of falsely accusing the Plaintiff of a violation of the criminal laws of the State of New York.

33. Because of the above stated false arrest, wrongful imprisonment and malicious prosecution, Plaintiff DENNIS DOLMO was caused to have suffered emotional pain, shock and mental anguish and these injuries and their effects will be permanent.

34. Because of the above stated false arrest, wrongful imprisonment and malicious prosecution, Plaintiff DENNIS DOLMO was caused to lose time from work, suffered lost wages, suffered damage to his personal and professional reputation and was otherwise financially

damaged.

35. That as a result of the foregoing search, seizure, false arrest, wrongful imprisonment and malicious prosecution, Plaintiff was damaged in an amount which exceeds the jurisdiction of all lower Courts that may otherwise have jurisdiction over this action.

Aa and for a fifth cause of action for violations of Civil Rights on behalf of

ALL PLAINTIFFS

36. Plaintiffs repeat and re-allege the allegations set forth in paragraphs "1" through "35" with the same force and effect as if more fully set forth at length herewith.

37. The search, seizure, arrest, and detention of the plaintiffs by the Defendants CITY OF NEW YORK, P.O. MICHAEL POMERANTZ Tax Id # 947364, P.O. CESAR GOMEZ Tax Id # 941024, Sergeant EDWIN CHING Tax Id # 917418, was under color of state law, statute, ordinance, regulation, custom, or usage as the agents and employees of the NYPD of Defendant CITY OF NEW YORK in violation of plaintiffs' rights under *42 USCA §1983 and §1985* as well as the United States Constitution.

38. The search, seizure, arrest and detention of the plaintiffs by the Defendant CITY OF NEW YORK, was effected by conspiracy involving P.O. MICHAEL POMERANTZ Tax Id # 947364, P.O. CESAR GOMEZ Tax Id # 941024, Sergeant EDWIN CHING Tax Id # 917418 and other members of the NYPD to violate plaintiffs' rights under *42 USCA §1985* as well as the United States Constitution.

39. Upon the above facts the defendants CITY OF NEW YORK, P.O. MICHAEL POMERANTZ Tax Id # 947364, P.O. CESAR GOMEZ Tax Id # 941024, Sergeant EDWIN

CHING Tax Id # 917418, did deprive plaintiffs of their Civil Rights as guaranteed by the United States, and did so in effecting a "stop and frisk" policy that was racially biased, unlawful and intended to violate the rights of the plaintiffs and others of their class and situation.

40. Because of the above stated premises, Plaintiffs JAHKEDA JOSEPH, DEVON JOSEPH, JONATHAN MARTINEZ & DENNIS DOLMO, were caused to have suffered pain, shock, mental anguish; that these injuries and their effects will be permanent; and as a further result of said conduct Plaintiffs have been caused to suffer actual pecuniary loss such as lost wages.

41. That as a result of said violation of rights plaintiffs suffered actual financial loss.

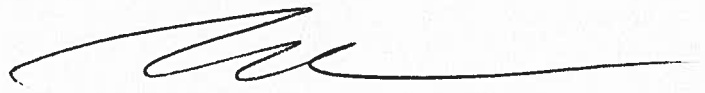
42. That as a result of the foregoing violation of their Civil Rights, Plaintiffs are entitled to the costs and attorney's fees of prosecuting this action and as a result of the foregoing violation of Civil Rights, Plaintiffs were damaged in an amount which exceeds the jurisdiction of all lower Courts.

As and for a sixth cause of action for Punitive Damages on behalf of ALL PLAINTIFFS

43. That as a result of the foregoing intentional and malicious violations of their State and Federal Civil Rights, Plaintiffs are entitled to punitive damages in an amount to be assessed at trial against P.O. MICHAEL POMERANTZ Tax Id # 947364, P.O. CESAR GOMEZ Tax Id # 941024, Sergeant EDWIN CHING Tax Id # 917418.

WHEREFORE, Plaintiffs demand judgment against the Defendants upon the causes of action set forth above, jointly and severally, in an amount to be determined by the trier of fact; together with the costs and disbursements of this action and punitive damages.

Dated: New York, New York
August 28, 2014



Thomas G. Cascione
CASCIONE, PURCIGLIOTTI & GALLUZZI, PC
Attorneys for Plaintiffs
20 Vesey Street, Suite 1100
New York, New York 10007
(212) 964-9640
Our File No.: 3854

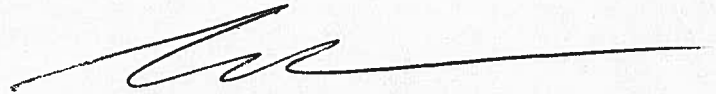
ATTORNEY'S VERIFICATION

THOMAS G. CASCIONE, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am an attorney at CASCIONE, PURCIGLIOTTI & GALLUZZI, PC, attorneys of record for Plaintiffs, JAHKEDA JOSEPH, DEVON JOSEPH, JONATHAN MARTINEZ & DENNIS DOLMO. I have read the annexed **SUMMONS and VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files.

The reason this verification is made by me and not Plaintiffs is that Plaintiffs do not reside in the county wherein the attorneys for the plaintiffs maintain their offices.

DATED: New York, New York
August 28, 2014



THOMAS G. CASCIONE

Index No.:

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF THE BRONX

JAHKEDA JOSEPH, DEVON JOSEPH,
JONATHAN MARTINEZ and DENNIS DOLMO,

Plaintiffs,

-against-

THE CITY OF NEW YORK, P.O. MICHAEL
POMERANTZ Tax Id # 947364, P.O. CESAR GOMEZ
Tax Id # 941024, Sergeant EDWIN CHING Tax Id # 917418

Defendants.

SUMMONS AND VERIFIED COMPLAINT

CASCIONE, PURCIGLIOTTI & GALLUZZI, P.C.

Attorneys for Plaintiffs
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New York, New York 10007
(212)964-9640

TO:
CORPORATION COUNSEL OF THE
CITY OF NEW YORK
Attorneys for Defendant
THE CITY OF NEW YORK
Claim #: 2014PI002183
Claim #: 2014PI002198
Claim #: 2014PI002199
Claim #: 2013PI07989
100 Church Street
New York, New York 10007

P.O. MICHAEL POMERANTZ Tax Id # 947364,
P.O. CESAR GOMEZ Tax Id # 941024,
Sergeant EDWIN CHING Tax Id # 917418 c/o NYPD 46th Pct.